

latter ignored the former's multiple communications for over a month. This assertion and its premise are one reason why the Court finds the Plaintiff has failed to act with substantial justification.

Plaintiff offers no justification at all, let alone a substantial one, for its actions in failing to meet and confer and in failing to provide code complaint responses over a four month period.

It is true that the motion to compel is moot regarding the production of supplemental responses, however the issue of sanctions may yet be addressed by the court.

California Rule of Court 3.1348 provides that sanctions may be imposed even if the requested discovery was provided after the motion to compel was filed.

The court orders Plaintiff's counsel to pay Defendant's counsel \$1200 in attorneys fees and \$60 in costs. Payment is due to Defendant's counsel within 30 days after service of notice of entry of this order on all parties.

17. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant BMW of North America, LLC (BMW)'s Motion filed March 11, 2026 to Compel Plaintiff's Further Responses to Special Interrogatories, Set One and for Monetary Sanctions is before the Court (Motion). Defendant included a sufficient description of its attempts to meet and confer with Plaintiff on February 10, February 18, March 5, and March 6 of 2026 prior to filing its motion. (Declaration of Danielle D. Greenstein, attached to Motion, ¶¶ 4-7, and Exs. C, D, E, and F.) Despite those meet and confer communications, Plaintiff had not, as of the time of the filing of the Motion, served supplemental responses to Special Interrogatories Nos. 7-14, 18, 19, 20, 21, 22, 23, 24, 25 and 26. (Greenstein Dec., page 13: ¶ 9.) Defendant requests \$1,260 in attorneys' fees and costs.

Plaintiff opposes the motion stating that Plaintiff's counsel was "recently assigned" to this case, "having taken it over from the previous attorney." (Plaintiff's Memorandum of Points and Authorities in Opposition to Defendant's Motion to Compel Responses

to Special Interrogatories, Set One (Opp.), filed June 26, 2026, at 2: 12-15.) Plaintiff's counsel states that promptly reviewed the file, but "inadvertently overlooked" a March 6, 2026 email from Defendant's counsel providing her availability. (Opp. 13-15.) In its Opposition, Plaintiff declared an intention to serve supplemental responses only to Special Interrogatories Nos. 7-14 "prior to the hearing on this motion." (Opp. 21-22) Plaintiff asserts that "Defendant deposed Plaintiff on April 8, 2026" and had a full opportunity to examine Plaintiff regarding the subsequent discovery these interrogatories address." (Opp., 2: 22-26.) Plaintiff states that Defendant "has therefore already obtained the information it seeks directly from Plaintiff, suffers no prejudice and that no court intervention is warranted." (Opp. 2:22-26.)

Defendant did not tailor its Reply pleadings to the arguments pertinent specifically to the Special Interrogatories. Its Memorandum of Points and Authorities merely repeated the arguments pertinent to the Plaintiff's position regarding their responses to the Form Interrogatories.

Plaintiff has failed to raise a valid objection to answering Special Interrogatories Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26. Merely that a deposition has been taken does not absolve a party from obligations to answer interrogatories. Plaintiff asserts but does not explain how the information sought in Special Interrogatories Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26 was provided in the Plaintiff's deposition. Finally, Plaintiff fails to assert and support a potentially valid objection, such as that the Special Interrogatories Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26 are unduly burdensome.

Defendant argues that Plaintiff's change of counsel within the same law firm does not constitute substantial justification for the failure to meet and confer nor for deficient discovery responses. The Court agrees.

The Court agrees with the Defendant. Lawyers at the same law firm received four meet and confer communications from defense counsel in a period of four weeks and made no response. Plaintiff's counsel asserts an "inadvertently overlooking" of the March 6, 2026 email from Defendant, but offers no explanation for its non-response to the three earlier emails, nor for the initially deficient discovery responses. Plaintiff's argument that Defendant failed to meet and confer because "Plaintiff never heard from Defendant again" after Plaintiff ignored Defendant's four attempts to meet and confer in February and March of 2026, and after Plaintiff "inadvertently overlooked" Defense counsel's last email dated March 6, 2026 defies logic. It assumes

the burden would be on Defense counsel to continue to reach out to Plaintiff after the latter ignored the former for over a month. This assertion and its premise are one reason why the Court finds the Plaintiff has failed to act with substantial justification.

Plaintiff argues that Defendant was able to depose Plaintiff in April 2026, but this does not excuse its actions in failing to meet and confer and in failing to provide code complaint responses over a four month period. The court finds that Plaintiff did not act with substantial justification.

Plaintiff's stated intention in its Opposition to provide only partial supplemental responses to Special Interrogatories Nos. 7-14 confirms that the requested discovery was not provided prior to the motion being filed, if it was provided at all.

California Rule of Court 3.1348 provides that sanctions may be imposed even if the discovery was provided after the motion to compel was filed.

The court orders Plaintiff's counsel to provide Defense counsel with code compliant answers to Special Interrogatories, Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26 within 30 days of service of notice of entry of this order on Plaintiff's counsel.

The court orders Plaintiff's counsel to pay Defendant's counsel \$100 in attorneys fees and \$60 in costs. The court finds justification for sanctions against Plaintiff but does not find the stated amount of \$1200 (\$400 for three hours of work) to be reasonable for a motion whose Memorandum of Points was pasted and copied from the Defendant's Motion concerning Form Interrogatories and was not tailored *at all* to the circumstances of the discovery dispute concerning the Special Interrogatories.

Payment is due to Defendant's counsel within 30 days after service of notice of entry of this order on all parties.

Issue Conferences

18. 10:00 AM CASE NUMBER: MSC21-02399

CASE NAME: SYED VS. LEITAO

ISSUE CONFERENCE

FILED BY:

TENTATIVE RULING:

Vacated by the court in response to unopposed *ex parte* application. Motion to set Trial was set for hearing July 17, 2026 at 9:00 a.m., Dept. 32.